the filing fee. Thus, a total of $1,485 shall be paid to Defendants. This amount is to be paid individually by counsel for Plaintiff – Huechi Wong.

Under section 473, subdivision (c), the Court may also direct "that an offending attorney pay an amount no greater than one thousand dollars ($1,000) to the State Bar Client Security Fund," among other relief. Given the pattern of neglect shown in this matter, the Court also directs Plaintiff's counsel to pay the amount of $1,000 to the State Bar Client Security Fund.

Conclusion

Plaintiff's motion to set aside the dismissal is **granted**. Plaintiff's counsel Huechi Wong is ordered to pay Defendants $1,485. He is also ordered to pay $1,000 to the State Bar Client Security Fund. These amounts shall be paid within 30 days of notice of entry of the order on this motion.

12. 9:00 AM CASE NUMBER: C25-01854
CASE NAME: RONESHA KEYS VS. SELINA CHEUNG
1ST AMENDED COMPLAINT
FILED BY: FEN GUAN, HUAN
****TENTATIVE RULING:****

This Motion was mooted by the filing of a Second Amended Complaint on July 15, 2026. Pursuant to stipulation, Defendant Guan was to withdraw the Demurrer. That did not occur, but the Court will not rule on the mooted Motion. Counsel are advised to remove mooted motions from calendar in the future.

13. 9:00 AM CASE NUMBER: C25-01854
CASE NAME: RONESHA KEYS VS. SELINA CHEUNG
STRIKE PLTFS 1ST AMENDED COMPLAINT
FILED BY: FEN GUAN, HUAN
****TENTATIVE RULING:****

This Motion was mooted by the filing of a Second Amended Complaint on July 15, 2026. Pursuant to stipulation, Defendant Guan was to withdraw the Demurrer (and, presumably, the Motion to Strike). That did not occur, but the Court will not rule on the mooted Motion. Counsel are advised to remove mooted motions from calendar in the future.

14. 9:00 AM CASE NUMBER: C25-01950
CASE NAME: KENNETH RAI VS. JEFFREY RAI
STRIKE THE FIRST AMENDED COMPLAINT
FILED BY: RAI, JEFFREY L.
****TENTATIVE RULING:****

Before the Court is a motion by defendant Jeffrey Rai to strike portions of the first amended complaint. For the reasons set forth, the motion to strike is **granted, without leave to amend**.

Background

Plaintiff filed the complaint commencing this action on July 7, 2025. In the operative first amended complaint ("FAC"), Plaintiff Kenneth Rai alleges claims against his son Jeffrey Rai for breach of contract (1st C/A), fraud based on misrepresentation (2nd C/A), and common counts for account stated and open book account (3rd and 4th C/As). (For clarity, the Court in some instances will identify the parties by their first names Kenneth and Jeffrey given their identical last names.) The Court will address the factual allegations of the FAC as relevant to the analysis of the demurrers to the specific causes of action is dispute.

Legal Standards Governing Motion to Strike Generally

The Court may strike allegations that are “irrelevant, false or improper matter” or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc. § 436(a) and (b).) Defendants' motion is made on the ground the allegations they seek to strike "request[] relief not supported by the allegations of the complaint." (Code Civ. Proc. § 431.10(b)(3).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading. (Code Civ. Proc. § 437.) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].)

It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (CCP § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Analysis

Defendant moves to strike the portions of the FAC requesting "reasonable attorneys' fees" as set forth at the page and line numbers of the FAC specified in the motion. (FAC p. 7, ll. 10-11; p. 8, ll. 5-6; p. 8, l. 10; p. 8, l. 27; and p. 9, l. 7.) Plaintiff is asking for recovery of attorneys' fees on each of his four causes of action alleged in the FAC. Defendant argues that there is no contractual or statutory basis for recovery of attorneys' fees in this case, and none is alleged in the FAC.

California follows the "American Rule" with regard to the recovery of attorneys' fees, pursuant to which each party bears his own attorneys' fees unless there is a statute or contract which provides otherwise. (*Guinnane Construction Co., Inc. v. Chess* (2026) 119 Cal.App.5th 689, 698; Code Civ. Proc. §§ 1021, 1032(b), and 1033.5(a)(10) [attorneys' fees allowed as costs to prevailing party when authorized by contract, statute or law].) The doctrine of "tort of another" is an exception to the American Rule and is the basis on which Plaintiff relies for his right to claim attorneys' fees in this case. (*Gray v. Don Miller & Associates, Inc.* (1984) 35 Cal.3d 498, 504.)

The "tort of another" exception "allows a plaintiff attorney fees if he is required to employ counsel to prosecute or defend an action against a third party because of the tort of the defendant. [Citation omitted.]" (*Id.* at 504 [citing *Prentice v. North Amer. Title Guar. Corp.* (1963) 59 Cal.2d 618, 620-621].) The Court in *Guinnane Construction* explained. "The rule in its usual formulation allows recovery of attorney fees and other expenditures incurred where a third party tortfeasor's conduct requires it to bring or defend an action against a third person. [Citations omitted.] . . . [¶] "Attorney fees recoverable under the tort of another doctrine are not treated as fees *qua* fees but as consequential tort damages. As our high court explained in *Prentice*, it was 'not dealing with 'the measure and mode of compensation of attorneys' but with damages wrongfully caused by defendant's improper actions.' [Citation omitted.]" (*Guinnane Construction Co., Inc., supra,* 119 Cal. App. 5th at 700-701.) (*See also Prentice v. North Am. Title Guaranty Corp*. (1963) 59 Cal.2d 618, 620 ["A person who through the tort of another has been required to act in the protection of his interests by bringing or defending an action against a third person is entitled to recover compensation for the reasonably necessary loss of time, attorney's fees, and other expenditures thereby suffered or incurred." (Emphasis added.)"].)

The Court in *Guinnane Construction* engaged in a lengthy review of decisions addressing the tort of another doctrine and affirmed the trial court's posttrial order denying *Guinnane Construction*'s motion for attorneys' fees. Based on intentional interference with a contract between Guinnane and the Petersons by a real estate agent and his firm, Guinnane had to file a specific performance action against third parties (the Petersons), and having successfully litigated that action, Guinnane sued the real estate agent and his firm for "tort of another" for recovery of the attorneys' fees it incurred in the Peterson third party specific performance litigation, which the trial court granted. Guinnane then sued the real estate agent and his firm for recovery of the attorneys' fees in the "tort of another" litigation against the real estate agent and the real estate firm, and the trial court granted judgment for Guinnane for the attorneys' fees incurred in the third party specific performance litigation but denied Guinnane's posttrial motion for attorneys' fees incurred in the tort of another action. The Court of Appeal affirmed the denial of the posttrial attorneys' fees motion. In so holding, the Court noted the distinction drawn by the California Supreme Court in the *Gray* decision "between damages in the form of fees incurred to prosecute or defend an action against a third party and fees incurred to recover those damages." (*Guinnane Construction Co., Inc., supra,* 119 Cal.App.5th at 701-702.) The Court affirmed that the tort of another doctrine did not apply and does not allow recovery of attorneys' fees in litigation with the alleged tortfeasor. (*Id*. at 702-704 [citing two decisions located by the Court, "*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 80 [100 Cal.Rptr.3d 152] ['The tort of another doctrine does not allow a party to recover the fees and costs involved in litigating directly with a negligent defendant']; *David v. Hermann* (2005) 129 Cal.App.4th 672, 689 ['Prentice made clear that Code of Civil Procedure section 1021 "prohibits the allowance of attorney fees against a defendant in an ordinary two-party lawsuit" [citing *Prentice*.] The courts have refrained from expanding the [tort of another] rule in a way that would undermine the general rule that a party bears his own attorney fees'].)"].)

The tort of another doctrine does not apply in this case and does not provide a basis for Plaintiff to claim attorneys' fees. First, the doctrine only allows recovery of attorneys' fees under the tort of another doctrine in a tort claim. Plaintiff cites no authority and makes no argument to support that he can recover attorneys' fees under that doctrine or any other basis on the breach of contract (1st C/A) or common count (3rd and 4th C/As) claims.

Second, Plaintiff has not alleged any facts showing that the predicate for application of the tort of another doctrine exists for purposes of his recovery of attorneys' fees on the second cause of action for fraud. Plaintiff has not alleged that he had to employ counsel to prosecute or defend any action involving a third party, which is the basis for application of the tort of another exception. None of the facts presented in the FAC suggest that Plaintiff could amend the FAC to allege additional facts that would allow recovery of attorneys' fees on any of the causes of action asserted, including the fraud cause of action.

The motion to strike is **granted** as requested, **without leave to amend**.

15. 9:00 AM CASE NUMBER: C25-01950
CASE NAME: KENNETH RAI VS. JEFFREY RAI
1ST AMENDED COMPLAINT
FILED BY: RAI, JEFFREY L.
TENTATIVE RULING:

Before the Court is a demurrer by defendant Jeffrey Rai to the first amended complaint. For the reasons set forth, the Court rules as follows: (a) general and special demurrers to first and third causes of action – **overruled**; and (b) general demurrers to second and fourth causes of action – **sustained, with leave to amend**.

Background

Plaintiff filed the complaint commencing this action on July 7, 2025. In the operative first amended complaint ("FAC"), Plaintiff Kenneth Rai alleges claims against his son Jeffrey Rai for breach of contract (1st C/A), fraud based on misrepresentation (2nd C/A), and common counts for account stated and open book account (3rd and 4th C/As). (For clarity, the Court in some instances will identify the parties by their first names Kenneth and Jeffrey given their identical last names.) The Court will address the factual allegations of the FAC as relevant to the analysis of the demurrers to the specific causes of action is dispute.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v. Mission Community Hospital* (2017) 11 Cal.App.5th 360, 374.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (*See also* Code Civ. Proc. § 452.)

In ruling on a demurrer, the Court also considers matters of which the Court can properly take judicial notice. (*Evans, supra,* 38 Cal.4th at 6; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) Though the Court deems the allegations of the complaint to the be true, where exhibits are attached to the complaint, the Court also accepts the statements in the exhibits as true and gives them precedence to the extent they contradict the allegations pled in the complaint. (*Moran v. Prime Healthcare Management, Inc.* (2016) 3 Cal.App.5th 1131, 1145-1146; *Mead v. Sanwa Bank California* (1998) 61 Cal.App.4th 561, 567-568 [stating "If the facts appearing in the attached exhibit contradict those expressly pleaded, those in the exhibit are given precedence same," but holding there was no contradiction in that case].)

To sustain a general demurrer based on the statute of limitations, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is time-barred, not that it might be barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32,